

		“In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.) Additionally, “[i]n passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (<i>Ibid.</i>) A demand for punitive damages for the commission of any tort requires more than the mere allegation of the “oppression, fraud, and malice” language found in Civil Code section 3294. (See <i>Perkins v Superior Court</i> (1981) 117 Cal.App.3d 1, 6-7.) “[F]acts must be alleged in the pleading to support such a claim.” (<i>Grieves v. Superior Court</i> (1984) 157 Cal.App.3d 159, 166.) The facts alleged must show the defendant “act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff’s rights.” (<i>Silberg v. California Life Ins. Co.</i> (1974) 11 Cal.3d 452, 462.) Section 3294, subdivision (c) defines malice, oppression and fraud as follows: “(1) ‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. [¶] (2) ‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. [¶] (3) ‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” Based on the Court’s ruling sustaining Defendant’s demurrer as to Plaintiff’s fraud cause of action, the Court finds no allegations of oppression, fraud, or malice to support a claim for punitive damages.
11	25-01458863 <i>Satin vs. HH Law Firm</i>	1) Motion to Compel Answers to Special Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Further Responses to Special Interrogatories 4) Motion to Compel Production 5) Motion to Compel Production 6) Motion to Deem Facts Admitted Plaintiff Ken Satin’s motion to compel defendant Hani Habbas to provide further responses, without objection, to Plaintiff’s Special Interrogatories (Set One) is CONTINUED to _____. The rule requiring a good faith effort to meet and confer about discovery disputes “is designed to encourage the parties to work out their differences informally so as to avoid the necessity for a formal order . . . [t]his, in turn, will lessen the burden on the court and reduce the unnecessary expenditure of resources by litigants through promotion of informal, extrajudicial resolution of discovery disputes.” (<i>Stewart v. Colonial Western Agency, Inc.</i> (2001) 87 Cal.App.4th 1006, 1016.) “The level of effort at informal resolution which satisfies the ‘reasonable and good faith

attempt' standard depends upon the circumstances. In a larger, more complex discovery context, a greater effort at informal resolution may be warranted. In a simpler, or more narrowly focused case, a more modest effort may suffice." (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 431.)

Plaintiff contends that despite efforts by Plaintiff to meet and confer, Defendant failed to meet and confer with Plaintiff regarding the interrogatories at issue in this Motion. (Dibona Decl., ¶ 11, Ex. 9.) The parties have discussed entering into a protective order to resolve privacy issues and in his Opposition, Defendant states he is not opposed to the entry of an appropriate protective order and remains willing to meet and confer with Plaintiff's counsel regarding its terms. (Opp., 4:26-27.)

The court finds further conferences between the parties would be productive. Therefore, the parties are ordered to engage in additional attempts to meet and confer regarding a protective order and other issues that remain in dispute, including a telephonic or in-person conference (not email). No later than 9 court days prior to the continued hearing, the parties are to file a Joint Statement which shall (1) describe the parties' attempts to meet and confer pursuant to this order, (2) identify each discovery request that remains in dispute, and (3) each party's position on the discovery request that remains in dispute.

Plaintiff to give notice.

MOTION NO. 2 [ROA 43]:

Plaintiffs Ken Satin and Advocate Law Firm, P.C.'s motion to compel defendant Hani Habbas to provide responses, without objection, to Plaintiff's Special Interrogatories (Set One), is DENIED as MOOT.

On 7-28-25, Plaintiffs filed their motion to compel Habbas to serve a response to Plaintiffs' Special Interrogatories (Set One). (ROA 43.) Thereafter, on 1/27/26, Plaintiff Ken Statin moved to compel a further response to the Special Interrogatories (Set One) to Habbas, in which Plaintiff states Habbas "timely served its responses on December 5, 2025, but the responses were incomplete, evasive, and insufficient." (ROA 120; 3:7-9.) Since Plaintiff states Habbas timely served its responses to the Special Interrogatories (Set One), the Motion is MOOT.

Plaintiffs to give notice.

MOTION NO. 3 [ROA 39]:

Plaintiffs Ken Satin and Advocate Law Firm, P.C.'s motion to compel defendant HH Law Firm to provide responses, without objection, to Plaintiff's Special Interrogatories (Set One), is DENIED as MOOT.

On 7-28-25, Plaintiffs filed their motion to compel HH Law Firm to serve a response to Plaintiffs' Special Interrogatories (Set One). (ROA 39.) Thereafter, on 1/27/26, Plaintiff Ken Statin moved to compel a further response to the Special Interrogatories (Set One) to HH Law Firm, in which Plaintiff states HH Law Firm "timely served its responses on

December 5, 2025, but the responses were incomplete, evasive, and insufficient.” (ROA 128; 3:7-9.) Since Plaintiff states HH Law Firm timely served its responses to the Special Interrogatories (Set One), the Motion is MOOT.

Plaintiffs to give notice.

MOTION NO. 4 [ROA 51]:

Plaintiffs Ken Satin and Advocate Law Firm, P.C.’s motion to compel defendant Hani Habbas to provide responses, without objection, to Plaintiff’s Requests for Production of Documents (Set One), is DENIED as MOOT.

On 7-28-25, Plaintiffs filed their motion to compel Habbas to serve a response to Plaintiffs’ Requests for Production of Documents (Set One). (ROA 51.) Thereafter, on 1/27/26, Plaintiff Ken Statin moved to compel a further response to the Requests for Production of Documents (Set One) to Habbas, in which Plaintiff states Habbas “timely served its responses on December 5, 2025, but the responses were incomplete, evasive, and insufficient.” (ROA 116; 3:7-9.) Since Plaintiff states Habbas timely served its responses to the Requests for Production of Documents (Set One), the Motion is MOOT.

Plaintiffs to give notice.

MOTION NO. 5 [ROA 47]:

Plaintiffs Ken Satin and Advocate Law Firm, P.C.’s motion to compel defendant HH Law Firm to provide responses, without objection, to Plaintiff’s Requests for Production of Documents (Set One), is DENIED as MOOT.

On 7-28-25, Plaintiffs filed their motion to compel HH Law Firm to serve a response to Plaintiffs’ Requests for Production of Documents (Set One). (ROA 47.) Thereafter, on 1/27/26, Plaintiff Ken Statin moved to compel a further response to the Requests for Production of Documents (Set One) to HH Law Firm, in which Plaintiff states HH Law Firm “timely served its responses on December 5, 2025, but the responses were incomplete, evasive, and insufficient.” (ROA 124; 3:7-9.) Since Plaintiff states HH Law Firm timely served its responses to the Requests for Production of Documents (Set One), the Motion is MOOT.

Plaintiffs to give notice.

		MOTION NO. 6 [ROA 63]: Plaintiffs Ken Satin and Advocate Law Firm, P.C.’s motion to deem admitted matters set forth in Plaintiffs’ Requests for Admissions (Set One) served on defendant Hani Habbas, is DENIED as MOOT. On 11-21-25, Habbas’ counsel submitted a Supplemental Declaration which states Habbas served his verified responses to Plaintiff’s Requests for Admission (Set One). (ROA 90; Rasheed Decl., ¶ 3.) Plaintiffs to give notice.
12	21-01226723 <i>Software Freedom Conservancy, Inc. vs. Vizio, Inc.</i>	Motion for Summary Judgment and/or Adjudication Defendant Vizio, Inc.’s Motion for Summary Adjudication (ROA 734) is) GRANTED. Plaintiff’s objections (ROA 744) are overruled. <u>Procedural History:</u> In the First Amended Complaint (FAC), Plaintiff asserts claims for breach of contract and declaratory relief related to Defendant’s use of open-source software for its smart TVs. Defendant filed its first motion for summary judgment, or in the alternative summary adjudication, on 4/28/23. It asserted Plaintiff’s contract and declaratory relief claims failed due to (1) Copyright Act preemption and (2) Plaintiff not being an intended third-party beneficiary of the open-source software licenses. The Court denied that motion on the grounds that Plaintiff’s claims did not arise under the Copyright Act and the language of the agreements suggested that third parties such as Plaintiff were intended to benefit from the open-source license through the right to receive the source code. Defendant filed its second motion for summary adjudication on 5/2/25, asserting the open-source licenses did not require it to provide all information necessary to permit users to reinstall modified software on Vizio’s devices. The Court granted the second motion on the grounds that the language of the agreements did not create such a duty. Now, Defendant moves for summary adjudication as to another aspect of Plaintiff’s contract claim – whether Plaintiff has demonstrated consideration sufficient to support its direct contract allegations. <u>Plaintiff’s Procedural Objections:</u> Plaintiff contends Defendant’s motion fails to comply with Code of Civil Procedure section 437c(f)(1), which states: “A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party